

25STCV30022 25STCV30022

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-08

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Case Number: 25STCV30022 Hearing Date: July 8, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

JONANTHAN MAURICE LEE ELBYE,

Plaintiff,

vs.

COUNTY OF LOS ANGELES (erroneously

sued as LOS ANGELES COUNTY SHERIFF'S DEPARTMENT, MARINA DEL REY SHERIFF'S
STATION), et al.,

Defendants.

Case No.:

25STCV30022

Hearing Date:

July 8, 2026

Hearing

Time: 2:00 p.m.

[TENTATIVE] ORDER

RE:

DEFENDANT COUNTY

OF LOS ANGELES' MOTION FOR JUDGMENT ON THE PLEADINGS

Background

On October 14, 2025, Plaintiff Jonathan Maurice Lee Elbye ("Plaintiff"), in pro per, filed this action against Defendant the County of Los Angeles, by and through the Los Angeles County Sheriff's Department (Marina del Rey Sheriff's Station) (the "County") and its deputies due to their alleged actions during Plaintiff's psychiatric emergency. The complaint alleges three causes of action for (1) negligence- public entity (Gov. Code § 815.2), (2) negligence- public employee (Gov. Code § 820), and (3) failure to discharge a mandatory duty, Gov. Code § 815.6.

The County now moves for judgment on the pleadings. Plaintiff did not file an opposition.

Discussion

As an initial matter, the County's counsel's declaration in support of the motion for judgment on the pleadings indicates, inter alia, that she "sent plaintiff a meet and confer letter setting forth the grounds for the motion to his address of record and his e-mail address of record." (Hur Decl., ¶ 3.) But "[t]o this date, plaintiff has not responded to the request to meet and confer." (Hur Decl., ¶ 4.) Counsel thus attests that "[d]ue to plaintiff's lack of response, we are unable to reach an agreement regarding the defenses that are raised in this motion." (Hur Decl., ¶ 5.) The Court notes that the County's counsel's declaration does not demonstrate that the parties met and conferred by telephone or in person, or that the County's counsel attempted to do so.

Pursuant to Code of Civil Procedure section 439, subdivision (a), "[b]efore filing a motion for judgment on the

pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Emphasis added.) Such meeting and conferring must be done in good faith with an effort to try to resolve the issues subject to the motion for judgment on the pleadings.

In light
of the foregoing, the hearing on the
County’s motion for judgment on the pleadings is continued
to _____, 2026 at
2 p.m. in Dept. 508.

The County is ordered to meet and
confer with Plaintiff within 10 days of the date of this Order. If the
parties are unable to resolve the pleading issues or if the parties are
otherwise unable to meet and confer in good faith, the County is to thereafter file and serve a declaration setting
forth the efforts to meet and confer in compliance with Code of Civil
Procedure section 439, subdivision (a)(3) within 15 days of this Order.

The County is ordered to provide notice of this Order.

DATED: July 8, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court